

Court an appropriate order reflecting this ruling in accordance with the Local Civil Rules.

16. 9:00 AM CASE NUMBER: MSC21-01827
CASE NAME: FROES VS. ROC FUNDING GROUP
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: ROC FUNDING GROUP,LLC A NEW YORK LIMITED LIABILITY COMPANY

TENTATIVE RULING:

The hearing on this matter is **vacated**. This matter is pending an appeal.

17. 9:00 AM CASE NUMBER: N25-2145
CASE NAME: CLAIM OF:TERRANCE WILEYTERRANCE WILEY
***HEARING ON MINOR'S COMPROMISE**
FILED BY:

Summary

Petitioner Darron Alonzo Thompson's Petition for Approval of Compromise of Minor Terrance Malik Wiley ("Minor") Claim, filed on October 28, 2025, is **granted**, as set forth below. No appearance is required at the hearing on February 25, 2026.

Background

Petitioner Darron Alonzo Thompson, parent and guardian ad litem for his son, Minor, filed the Petition through counsel Mahvar Roshani, Esq., to compromise the claim that Minor had against Bryan Ernest Keding related to an accident that occurred on August 21, 2023 in Pittsburg, California. In that accident, Minor sustained injuries including to his spine and lower back. Petitioner represents that Minor has received treatment at Kaiser Hospital and a Miller Chiropractic Injury Center. He has fully recovered and there are no permanent injuries. The Defendants collectively offered settlement in the amount of \$13,000, of which \$8,351 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of \$4,648.15 represents a negotiated deduction from the settlement, which is used to satisfy any liens for medical expenses and to pay for attorney's fees and costs incurred. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on October 28, 2025. No appearance is necessary at the February 25, 2026 hearing.

Discovery Law & Motion

18. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY ORDERS: 1) DEEMING ADMITTED TRUTH OF FACTS AS TO**

**PLAINTIFF LYNETTA WESTBROOK, INDIVIDUALLY AND 2) IMPOSING MONETARY SANCTIONS
FILED BY: SAN PABLO HEALTHCARE & WELLNESS CENTER LLC**

TENTATIVE RULING:

Summary

This tentative ruling applies to lines 18, 19 and 1720 which are the three discovery motions filed by Defendant San Pablo Healthcare and Wellness Center LLC dba San Pablo Healthcare and Wellness Center (“Defendant”) against Plaintiff Lynetta Westbrook (“Plaintiff”) calendared for hearing on February 25, 2026. Because no timely oppositions to each of these motions were filed with the Court, each of these motions are **granted** in their entirety. No appearance is required on February 25, 2026.

Background

Defendant filed the following discovery motions:

1. September 8, 2025 Motion for Orders Demming Admitted Truth of Facts As to Plaintiff Lynetta Westbrook, Individually, and Imposing Monetary Sanctions \$1,772.95
2. September 8, 2025 Motion for Orders Deeming Admitted Truth of Facts as to Plaintiff Lynetta Westbrook, as Successor in Interest to Alex Pollard (Deceased) and Imposing Monetary Sanctions (\$1,772.95)
3. September 8, 2025 Motion to Compel Production of Documents and Things (Set Two) against Plaintiff individually and for sanctions \$1,522.95

These three motions were supported by Notice, Memoranda of Points and Authorities, Separate Statement (where required for the Motion to Compel Further Responses), Declarations of Counsel Valerie A. Kraml, and proposed orders lodged with the Court. The proofs of service for each motion evidence service of each motion on September 16, 2025 by e-mail to Plaintiff’s Counsel of Record, Dawn M. Smith. No timely responses were received from Plaintiff.

Analyses

Pursuant to Cal. Code of Civ. Proc. § 1005(b), “all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing.” Nine court days before the hearing is February 3, 2026. No timely opposition was filed. Defendant’s counsel filed a Non-Receipt of Opposition to all three motions.

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.];

Moreover, California courts recognize that a party’s failure to file opposition supports treating the

motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See the court’s website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Applied here, the Court finds that Plaintiff’s failure to timely oppose Defendant’s Motions is a deemed to be her consent to the granting of all three motions.

Ruling

The Court grants the following motions and their respective sanctions:

1. September 8, 2025 Motion for Orders Deeming Admitted Truth of Facts As to Plaintiff Lynetta Westbrook, Individually, and Imposing Monetary Sanctions \$1,772.95
2. September 8, 2025 Motion for Orders Deeming Admitted Truth of Facts as to Plaintiff Lynetta Westbrook, as Successor in Interest to Alex Pollard (Deceased) and Imposing Monetary Sanctions (\$1,772.95)
3. September 8, 2025 Motion to Compel Production of Documents and Things (Set Two) against Plaintiff individually and for sanctions \$1,522.95
4. Plaintiff shall pay the foregoing sanctions to Defendant’s Counsel no later than ten (10) days from the date of this hearing.
5. The Court will execute the three proposed orders granting each motion lodged on September 16, 2026 and November 17, 2026. No appearance is required on February 25, 2026.

19. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY ORDERS: 1) DEEMING ADMITTED TRUTH OF FACTS AS TO PLAINTIFF LYNETTA WESTBROOK, AS SUCCESSOR IN INTEREST TO ALEX POLLARD, DECEASED AND 2) IMPOSING MONETARY SANCTIONS**
FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC
TENTATIVE RULING:
See Line 18.

20. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS AND THINGS (SET TWO) AS AGAINST PLAINTIFF, INDIVIDUALLY, AND FOR MONETARY SANCTIONS**
FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC
TENTATIVE RULING:
See Line 18.